THE STATE

versus

GIFT MATHE

HIGH COURT OF ZIMBABWE
MUTEVEDZI & NDLOVU JJ
BULAWAYO, 10 JUNE 2026

Criminal review judgment

MUTEVEDZI J: The advent of the Criminal Laws Amendment (Protection of Children and Young Persons) Act, 2024, came with profound amendments to the law governing infarctions of having consensual sexual intercourse or performing indecent acts with children between the ages of twelve (12) and eighteen (18) years.

[1] One of the novel aspects of that law was the introduction of the so-called 'Romeo and Juliet' provisions whose essence is that not only children but some adults whose ages are sufficiently close to those of their child victims, may not be prosecuted for the crime, without the authority of the Prosecutor - General. That law, noble as its intentions may have been, unfortunately brought with it, unintended challenges. As will be demonstrated, the issue which arises in this case has never been previously explored.

[2] Gift Mathe ("the accused") appeared before the court of a regional magistrate at Hwange. He was only **20 years** old at the time. He faced a charge of rape as defined in s 65(1) of the Criminal Law (Codification and Reform) Act *[Chapter 9:23]*, (the CODE.) It was alleged that on 7 February 2025 and at F section Number 2 Hwange, he unlawfully and knowingly had sexual intercourse with the complainant, a female juvenile **aged 17 years**, without her consent.

[3] The accused denied the allegations, and the matter proceeded via a contested trial. Right from the onset, he argued that he had not raped the complainant because the sexual intercourse was consensual. At the end of the trial, the learned regional magistrate found that the complainant had indeed consented to the sexual intercourse. As a result, the court acquitted the accused of the charge of rape but found him guilty of the competent verdict of having sexual intercourse

with a child in contravention of s70(1) of the CODE. It is that decision which complicates issues.

[4] When the record of proceedings was placed before me for review in terms of s57 of the Magistrate Court Act [*Chapter 7:10*] ("the MCA"), I immediately became concerned with the propriety of the conviction. I raised a query with the trial magistrate which was couched in the following terms:

> "The accused in this case was initially charged with rape. He was acquitted on that charge but was convicted of the crime of c/s 70 of the CODE, that is having sexual intercourse with a child. The complainant was born on 16 August 2007. The intercourse took place on 7 February 2025. It means that at the time of the intercourse, she was about 17 years, 5 months, and 22 days old… The offender's age is stated as twenty (20) years. That would mean the age difference between him and the complainant was less than 3 years. Did prosecutor produce the certificate authorizing the offender's prosecution in this case? If he didn't, how was the offender convicted on that charge? May the trial magistrate comment on these issues."

[5] In his response, the trial magistrate stated that: -

> "The trial magistrate admits the age difference between the offender and victim was less than 3 years. This called for the state to obtain authority to prosecute from the Prosecutor General. I concede this was never done in this matter. During the management of this trial the court failed to ensure the certificate is availed at the commencement of trial. During the management of the trial, I erred by assuming that when finding accused guilty of a competent verdict such authority to prosecute was not required. On receiving this query, I have researched and admit this reasoning was wrong. The law maker by making a provision for obtaining a Prosecutor General's authority implied that without such certificate an accused cannot be charged hence no verdict of guilty can be pronounced." (Underlining is my own emphasis.)

[6] For purposes of completeness and putting this matter into its proper context, I may need to restate s 70 (3) of the CODE. It provides that: -

> "(3) Where sexual intercourse or an indecent act takes place between-
> (a) children between whom the difference in age is not more than three years; or
> (b) a child and an adult who is not more than three years older than the child;
> neither of them shall be charged with sexual intercourse or performing an indecent act with a child unless the Prosecutor-General, after considering a report by a probation officer appointed in terms of the Children's Act [*Chapter 5:06*], has authorised the charge." (my emphasis)

[7] The above provision, which like I have stated, is new in our law, was interpreted by MUSHURE J in *S* v *Madiro* HH292-25 at p. 4 of the judgment when she said: -

> "If I have understood the amendment correctly, s70 (3) introduces two primary considerations to be taken into account before a person is charged under s70. Both considerations have to do with the ages of both the accused and the complainant. The first consideration is the ages of the accused and complainant where both of them are children. If both are children and the age gap between them is three years or less, then the authority of the Prosecutor General is required to prefer those charges… Reverting to the issue at hand, s70 (3) (b) provides for a process similar to the process under s70 (3) (a) where the offence is committed between a child and an adult who have an age gap of not more than three years. Thus, where for instance the complainant is seventeen and half and the accused is nineteen, the offence, though involving a child and an adult would fall within the remit of s70 (3) (b) by virtue of their age gap. This is a new requirement of our law and the reason why the scrutinising regional magistrate referred the current matter for review."

[8] It is therefore evident that s70(3) is not a mere procedural formality. Where the conditions and circumstances are such as is described, no prosecution may ensue without the Prosecutor-General's authority. The rationale for the provision is not difficult to discern. It is intended to avoid the over-criminalisation of consensual romantic relationships between and amongst minors and or between a minor and a young adult whose age-gap with the child removes the danger that the affair is predatory or exploitative. These relationships are often described as the 'Romeo and Juliet' romances, due to their intense passion and defiance of societal norms, mostly driven by hasty and impulsive decisions, inevitably leading to disastrous consequences. In full recognition of that, the law maker took a pragmatic approach to the issue and elected to factor in real world challenges whose solution is not solely criminal sanction, but also an acceptance that child ren amongst themselves, or a child and an adult barely three years older, are peers in human development. It is undeniable that often, young people experiment with intimate relationships which unfortunately may end up with them indulging in sexual intercourse. Where both are children, neither of them would have attained the age to consent to sexual intercourse. I have already said that in the case of a child and an adult who is not more than 3 years older, the logic is that the relationship is viewed as less predatory or exploitative than whare the age difference is bigger.[1]

[9] It is for the above reasons that, that the law installs the Prosecutor-General as the sentinel who maintains the balance between strict enforcement of the law proscribing sexual intercourse with children under the age of eighteen years and the mechanism which affords her latitude not to prosecute transgressions by the close-in-age children and young adults.

[10] With the above in mind, the question which arises is **whether or not it is permissible, to prosecute, through the backdoor, an adult who would otherwise be protected by the above law, without the Prosecutor-General's certificate.**

[1] Veritas Women, *A Review of the Presidential Powers (Temporary Measures) (Criminal Law Protection of Children and young persons) Regulations, 2024*; Issue of 25 January 2024.

[11] In this case, and from the very onset, the accused denied the allegations of rape. His defence was always that he had consensual intercourse with the child complainant. Given that, it is not unreasonable for the court to infer that he took that position even in his warned and cautioned statement to the police. That stance ought to have alerted the prosecutor, early enough, of the nature of defence which the accused was most likely going to rely on at trial. A competent prosecutor, when assessing a docket including deciding what charge to prefer, must be guided, amongst other considerations, by the evidence on the docket. He/she must take particular interest in the witness statements and the accused's response to the charge during investigations in addition to any defence the accused may have specifically raised. Put in another way, the prosecutor ought to have regard to any defence/s which are plainly open to the accused, or which have come to his/her attention. Only then, can he/she be sure that he/she has done his part to advance the interests of justice.

[12] It is on the above basis that a prosecutor is able to determine that from the evidence on the docket there is either no doubt as to what offence the accused committed and can be proved or that it is doubtful what offence has been committed and consequently what it is that can be proved. Where he /she has doubt, as to what can be proved, the prosecutor must rely on s 145 of the Criminal Procedure and Evidence Act [Chapter 9:07] (the CPEA) which guides the prosecution on how to charge an accused where, from the evidence available, it is doubtful what offence has been committed. That way, the prosecutor does not begin a trial, only to wander through it.

[13] I remain alive to the fact that a contravention of s 70 of the CODE is a permissible or competent verdict to the charge of rape. It would therefore be superfluous to charge it in the alternative to rape. The point I make is however that, a prosecutor must never lose sight of the fact that for a person in the circumstances of the accused in this case to be convicted of such a crime, there must be the express permission of the Prosecutor-General to institute the prosecution in the first place. It would be absurd to imagine that, where the person is initially charged with rape, he may be convicted of contravening s 70 without the need for the certificate. Section 56 of the Constitution, 2013, provides for equality before the law and the right to equal protection of the law. It would amount to a discriminatory practice to allow one person to be prosecuted without the Prosecutor – General's certificate for an offence where

others who are similarly placed are afforded that protection. See the case of *Masendeke*.*v Kukura Kurerwa Bus Svcs (Pvt) Ltd* HH598-16. Section 70 (3) provides a special defence, such as in the present case, through the closeness-in-age exemption which allows a prosecution of those exempted, only if the Prosecutor-General, after considering a probation officer's report grants authority to prosecute. It must be obvious therefore, to a diligent prosecutor who anticipates a court to return a competent verdict of contravening s 70 on a charge of rape, that he/she must first obtain authority from the Prosecutor-General to cover that possible eventuality without which the trial court will be hamstrung to return that verdict.

[14] Admittedly, the Prosecutor-General is *dominus litis* and has the power to choose what charge she deems appropriate. That power is however, subject to legislative restrictions like s 70(3) of the CODE, which add special considerations. Where a prosecutor desires a conviction on the competent charge of contravening s 70, because based on the evidence on the docket, he/she is doubtful that the charge of rape can be proved against a person who alleges that sexual intercourse was consensual, and who falls into the category where the Prosecutor-General's certificate is required, due to the closeness-in-age gap, between himself and the victim, must first seek authority from the Prosecutor-General. It is that certificate which can proof or protect the prosecution against a complete acquittal of that person even where it proves the competent verdict of contravening section 70 as opposed to the original charge of rape at trial. In my view failure to obtain prior authority from the Prosecutor - General renders returning the competent verdict of a contravention s 70 a nullity. That is so, because an accused would have been deprived/disabled from tendering the special plea provided by s 180(2)(g) of the CPEA, that is, "*that the prosecutor has no title to prosecute."* Needless to state, where a prosecutor had no title to prosecute, the by-product of any prosecution that he/she conducts stands on nothing and must fall. To borrow the famous words of LORD DENNING in *McFoy* v *United Africa Co Ltd* [1961] 3 All ER 1169 (PC) at 1172 I, "every proceeding which is founded on it is also bad and incurably bad. You cannot put something on nothing and expect it to stay there. It will collapse."

[15] I entertain no doubt that Parliament's intention when enacting s 70(3) was to proscribe the institution of criminal proceedings before compliance with that law. The section serves several important purposes. First, it introduces a sieve through which only those cases which deserve

prosecution pass through; second, it presupposes the individualisation of assessment of cases; third, it reinforces the Prosecutor-General's power, as the highest-ranking official in prosecution service, to make independent decisions; and fourth, it is an enabler for the social development of children. I must also add that the requirement to obtain the certificate becomes operational before the trial commences, not during its conduct or after it terminates.

[16] In the present circumstances, the reasoning of the trial court was that the accused was charged with rape, and the conviction followed on a competent verdict under s70(1) of the CODE. As already explained, that is untenable because as shown above, a competent verdict does not exist in a vacuum. Rather, it is always anchored on a properly commenced prosecution. In this case, the permissible verdict fell within a strict statutory regime which required certain preconditions to be met. It would not make sense to argue that the prerequisites for a prosecution in terms of s70(3) were not necessary because the conviction ensued at the termination of the rape trial instead of at the initiation of a charge under s 70(1). Accepting that argument would only serve to circumvent the requirement of the law that everyone must be slow to criminalise consensual sexual conduct between developmental peers. Further, such course would open flood gates for prosecution to go round statutory safeguards by preferring more serious offences such as rape in a bid to secure convictions on lesser offences like contravening s70, without the express permission of the Prosecutor-General and the guidance of professionals with expertise in the development of children and young adults.

[17] Refreshingly, the trial magistrate appreciated, albeit belatedly, that the absence of the Prosecutor-General's certificate entailed that the permissible verdict was incompetent. It is not debatable that the State had a right to prosecute the accused on the charge of rape without the Prosecutor-General's certificate notwithstanding the less than three years age gap between the accused and the child victim, but it could not prosecute him on a charge of having sexual intercourse with a child under s70(1) of the CODE without the same.

Disposition

[18] In the end, the decision by the learned regional magistrate to convict the accused on the competent charge of contravening s 70 (1) of the CODE was clearly incompetent and invalid. Failure to obtain a certificate from the Prosecutor-General in terms of s 70(3), irrevocably estopped the prosecutor from instituting such prosecution. It invalidated everything that

followed. The State resorted to discriminatory and backdoor tactics to secure the accused's conviction in circumstances where there was non-compliance with a statutory prerequisite. That constitutes a gross irregularity which forces me to interfere with the conviction.

[19] Accordingly, I direct as follows: –

i. The conviction of the accused on the competent verdict of contravening s70(1) of CODE, that is 'Having sexual intercourse with a child,' be and is hereby quashed.
ii. For the avoidance of doubt, and by operation of law, the sentence imposed by the trial court stands vacated.
iii. The State may, at its utmost discretion, and after securing the necessary certificate from the Prosecutor-General, reinstitute the charge against the accused.
iv. The trial magistrate shall, without delay, recall the accused person and advise him of these developments.

MUTEVEDZI J……

NDLOVU J…….. I agree